

time or times as opportunity should occur, was insufficient (*a*); but by sect. 5 of the Settled Land Act, 1884 (*b*), it is now provided, by sub-sect. (1), that the notice required by sect. 45 of the Act of 1882 of intention to make a sale, exchange, partition, or lease, may be notice of a general intention in that behalf; but by sub-sect. (2), the tenant for life is, upon request by a trustee of the settlement, to furnish to him such particulars and information as may reasonably be required by him from time to time with reference to sales, exchanges, partitions, or leases effected or in progress, or immediately intended; and the section applies, by sub-sect. (4), to a notice given before, as well as to a notice given after, the passing of the Act; provided, by sub-sect. (5), that no objection to such notice was taken before the passing of the Act.

Except as to a mortgage or charge.—It is to be observed that the Act of 1884 does not extend to the case of notice of intention to make a mortgage or charge; and such a notice, to be valid, must specify the particular mortgage or charge contemplated at the time when the notice is given (*c*).

Committee of lunatic.—The committee of a lunatic tenant for life cannot give a legal notice under the Act, unless he has previously obtained the sanction of the Court of Lunacy thereto (*d*).

Waiver of notice.—Any trustee, by writing under his hand, may waive notice, either in any particular case or generally, and may accept less than one month's notice (*e*). And it is conceived that the waiver of notice, or acceptance of shorter notice, if signed by all the trustees, will extend as well to the notice to be given to the trustees' solicitor under the Act of 1882, as to the notice to be given to the trustees themselves.

12. **Where notice to sole trustee sufficient.**—Where trustees are appointed by a settlement with such powers as to make

(*a*) *Re Ray's Settled Estates*, 25 Ch. D. 464.

(*b*) 47 & 48 Vict. c. 18.

(*c*) *Re Ray's Settled Estates*, 25 Ch. D. 464.

(*d*) *Re Ray's Settled Estates*, *ubi supra*.

(*e*) 47 & 48 Vict. c. 18, s. 5 (3).